



Notification Waiver Determination

Star Hotels Group – Fiveways Hotel Toowoomba

Acquisition	SGL Hotels Pty Ltd and SCHF Pty Ltd (together, Star Hotels Group) applied for a notification waiver in respect of its proposed acquisition of the business assets and freehold land of Fiveways Hotel Toowoomba , as well as two adjacent freehold residential lots, from MPG Fiveways Prop Pty Ltd and MPG Fiveways Op Pty Ltd, as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	23 April 2026

Parties to the Acquisition	The acquirer, Star Hotels Group, is an independently owned and operated hospitality group, primarily operating pubs along the eastern seaboard of Queensland and four venues in South Australia. It also operates liquor retail outlets under brands including Star Liquor, Sense of Taste, and Bob's Bulk Booze, as well as accommodation at certain venues. In the Toowoomba area, Star Hotels Group operates Westbrook Tavern (a licensed pub with a bistro and gaming facilities) and Star Liquor Ruthven Street (a retail liquor outlet). The target business, Fiveways Hotel Toowoomba, is currently closed but previously operated a bar with food and gaming, as well as a drive-through liquor store. Under the Acquisition, Star Hotels Group will acquire the freehold land of the business, two adjacent freehold residential lots, and the business assets (including fixtures, fittings, and licences) of Fiveways Hotel Toowoomba. Star Hotels Group and Fiveways Hotel Toowoomba overlap in the supply of dining, gaming, and liquor services in the Toowoomba area.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver, and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information currently before it, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular: a. there is a small horizontal overlap between Star Hotels Group and Fiveways Hotel Toowoomba in the supply of

	dining, gaming and liquor for onsite and offsite consumption in the Toowoomba area b. the combined share of the parties in the supply of dining, gaming, and liquor services in the Toowoomba area is low c. there are alternative suppliers of dining, gaming, and liquor services at the local and regional level. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.
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Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act